

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Telegraph Act, 1863	26 & 27 Vict. c. 112.
Telegraph Act, 1869	32 & 33 Vict. c. 73.
Telegraph Act, 1885	48 & 49 Vict. c. 58.
Telegraph Act, 1899	62 & 63 Vict. c. 38.
Telegraph (Construction) Act, 1908	8 Edw. 7. c. 33.
Telegraph (Arbitration) Act, 1909	9 Edw. 7. c. 20.
Telegraph (Construction) Act, 1911	1 & 2 Geo. 5. c. 39.
Telegraph (Construction) Act, 1916... ..	6 & 7 Geo. 5. c. 40.

CHAPTER 15

Criminal Justice Administration Act, 1962

ARRANGEMENT OF SECTIONS

Courts and judicial officers

Section

1. Additional judges of High Court.
2. Assistant clerks of assize.
3. Sheriff of Hallamshire.
4. County and borough sessions.
5. Elected chairman of county sessions.
6. London sessions.
7. Appointment of deputy recorders and assistant recorders.
8. Remuneration of recorders, chairmen of county sessions and their deputies and assistants.
9. Removal of recorder and others.
10. Remuneration of certain clerks of the peace.
11. Qualifications of clerks at certain stipendiary courts.

Criminal procedure

12. Extension of jurisdiction of quarter sessions and magistrates' courts.
13. Power to discontinue summary trial of indictable offence and resume committal proceedings.
14. Committal to assizes or quarter sessions.

Section

15. Committal to more convenient court.
16. Adjournment after conviction and resumption by different or differently composed court.
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Miscellaneous and general

18. Contribution to costs incurred under certain provisions.
19. Financial provisions.
20. Amendments and repeals.
21. Short title, interpretation, commencement and extent.

SCHEDULES:

First Schedule—Hallamshire.

Second Schedule—Offences triable at quarter sessions.

Third Schedule—Indictable offences triable summarily.

Fourth Schedule—Enactments amended.

Fifth Schedule—Enactments repealed.

An Act to provide for the appointment of additional puisne judges of the High Court, of assistant clerks of assize and of a sheriff for part of the West Riding of York; to amend the law relating to courts of quarter sessions and to the administration of criminal justice in England and Wales; and for purposes connected with those matters.
[29th March, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

*Courts and judicial officers*Additional
judges of
High Court.

1. The maximum number of puisne judges of the High Court shall be increased from forty-eight to fifty-three.

Assistant
clerks of
assize.

- 2.—(1) If it appears to the Lord Chancellor expedient, having regard to the duties to be performed by the clerk of assize on any circuit, he may appoint one or more persons to be assistant to the clerk of assize on that circuit; but a person shall not be so appointed unless he is a barrister or solicitor of not less than five years' standing or is an officer of the central office of the Supreme Court who, for not less than five years, has performed such duties under the direction of a clerk of assize as were before the day appointed under section two of the Supreme Court of Judicature (Circuit Officers) Act, 1946, performed by associates or clerks of indictments or arraigns.

- (2) The Lord Chancellor may direct which of the functions of the clerk of assize on any circuit are to be performed by a person appointed under this section, but subject to any such

direction a person so appointed shall perform, under the direction of the clerk of assize, such of the functions of the clerk of assize as the clerk of assize may from time to time determine.

(3) Anything done by, to or before a person appointed under this section shall be of the same effect as if done by, to or before the clerk of assize.

(4) Subsection (2) of section one of the Supreme Court of Judicature (Circuit Officers) Act, 1946, and the Administration of Justice (Pensions) Act, 1950, shall apply in relation to persons appointed under this section as they apply in relation to clerks of assize appointed under that section.

(5) A person appointed under this section shall be included among the persons who may be appointed clerk of assize under section one of the said Act of 1946.

(6) Nothing in this Act shall affect any appointment made under subsection (3) of section five of the Criminal Justice Administration Act, 1956 (which makes provision, in relation to the northern circuit, similar to the provision made by subsection (1) of this section) but any such appointment shall have effect as if made under this section.

3.—(1) For the purposes of the law relating to sheriffs, the Sheffield Division of the county of York, that is to say the area comprising the city, boroughs and districts mentioned in Part I of the First Schedule to this Act, with the exception of the parishes mentioned in Part II of that Schedule, shall on the appointed day cease to be part of the county of York and become a separate county by the name of Hallamshire. Sheriff of Hallamshire.

(2) Subsection (1) of section six of the Sheriffs Act, 1887, shall not apply to the nomination of the first person to serve as sheriff of the county created by this section ; but Her Majesty's Lieutenant for the West Riding of York shall as soon as may be after the passing of this Act nominate three persons fit to serve as sheriff of that county.

(3) Any functions exercisable by the sheriff of the county of York in relation to the attendance of jurors at the quarter sessions for the West Riding of that county shall continue to be exercisable by him as if this section had not been passed, and no such functions shall be exercised by the sheriff of Hallamshire.

(4) Nothing in this section shall affect the validity of any writ or other document issued or thing done before the appointed day.

(5) The power conferred by section seventy-two of the Supreme Court of Judicature (Consolidation) Act, 1925, to divide or alter the division of a county for the purposes of an Order in Council under that section shall include power to make such provision modifying this section or the First Schedule to this Act

as may appear to Her Majesty to be expedient in consequence of any alteration in the divisions into which the county of York is divided by such an Order for the purposes of assizes.

(6) In this section "the appointed day" means such day as the Lord Chancellor may by order made by statutory instrument appoint.

County and
borough
sessions.

4.—(1) Courts of quarter sessions for any county other than the county of London or for any borough shall be held at such times as the justices for that county or, as the case may be, the recorder, think fit or the Lord Chancellor directs, but shall be held at least four times a year; and a recorder shall have the like powers to adjourn his court, including the power to do so without fixing a date for the adjourned sessions, as are exercisable by a court of quarter sessions for a county other than the county of London.

(2) Where a court of quarter sessions is adjourned, the sessions held by adjournment may, in relation to such business and to such extent as the court directs, be treated for the purposes of any enactment as the next court of quarter sessions, but shall not be so treated unless the court so directs.

(3) Anything to be done at a court of quarter sessions which, under any enactment, is to be done at sessions held at a specified time may be done at the first sessions held after that time, in any case where either no sessions are held at that time or sessions held at that time were begun before that time.

(4) The Lord Chancellor may by rules made by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament, provide for such arrangements to be made for the disposal of business at courts of quarter sessions as appear to him desirable; and any such rules may prescribe the practice to be followed by clerks of the peace and governors of prisons in carrying out or facilitating those arrangements.

(5) Where at the time and place appointed for a sitting of a court of quarter sessions for any county other than the county of London no other member of the court is available than a person who for the purposes of section two of the Administration of Justice (Miscellaneous Provisions) Act, 1938, is deemed to be a legally qualified chairman in relation to the court, and it appears to him undesirable, having regard to the delay involved, to postpone dealing or further dealing with the case of a person committed to the court for trial, he may hold the sitting and deal with the case.

(6) Any functions exercisable before the commencement of this Act by an appeal committee appointed under section seven of the Summary Jurisdiction (Appeals) Act, 1933, shall after the

commencement of this Act be exercisable by the court by which the committee was appointed.

(7) Arrangements shall be made to secure, so far as practicable, that where a court of quarter sessions for a county other than the county of London deals with a case on appeal from a juvenile court not less than half the justices sitting are justices qualified to sit as members of a juvenile court, and of the justices sitting and so qualified one is a man and one a woman.

5. A person shall not be capable of being elected chairman of a court of quarter sessions for any county unless he holds or has held one of the offices mentioned in subsection (3) of section two of the Administration of Justice (Miscellaneous Provisions) Act, 1938. Elected chairman of county sessions.

6. The functions conferred on the Secretary of State by subsections (6) and (7) of section forty-two of the Local Government Act, 1888 (which relate to the regulation of quarter sessions for the county of London) shall after the commencement of this Act be exercisable by the Lord Chancellor; and the references in those subsections to a Secretary of State shall be construed accordingly. London Sessions.

7.—(1) The power under section one hundred and sixty-six of the Municipal Corporations Act, 1882, to appoint a deputy recorder shall be exercisable in relation to any sitting or number of sittings of the court or for any period not exceeding three months and may, if not exercised by the recorder, be exercised by the Lord Chancellor in any case where it appears to him that the appointment is required in the interests of the administration of justice; but, except in case of sickness or unavoidable absence, the recorder shall not exercise that power if by doing so he would hold less than four sessions a year in person (not counting sessions held by adjournment). Appointment of deputy recorders and assistant recorders.

(2) A recorder shall not appoint any person to be deputy recorder unless that person has been approved by the Lord Chancellor as fit to be appointed a deputy recorder.

(3) Paragraph (a) of subsection (6) of section one hundred and sixty-eight of the Municipal Corporations Act, 1882 (under which an assistant recorder cannot be appointed except in pursuance of a resolution of the borough council) shall cease to have effect.

8.—(1) The remuneration to be paid to a recorder, deputy recorder or assistant recorder and the remuneration (if any) to be paid to a chairman or deputy chairman of a court of quarter sessions for a county or to any person temporarily acting as such a chairman or deputy chairman shall be at such rates as may from time to time be determined by the Lord Chancellor with the approval of the Treasury. Remuneration of recorders, chairmen of county sessions and their deputies and assistants.

(2) Before determining any such rate of remuneration the Lord Chancellor shall—

- (a) if the rate is to apply to a particular borough or county, consult the council of that borough or county ;
- (b) if it is to apply generally or to any class of boroughs or counties, consult the Association of Municipal Corporations or, as the case may be, the County Councils Association.

(3) The remuneration payable to a deputy recorder in accordance with this section shall be paid by the council of the borough at whose sessions he is appointed to act.

(4) For the purposes of this section, the rate at which any such remuneration as is mentioned in subsection (1) of this section, other than the remuneration of a deputy recorder, is payable at the commencement of this Act shall be deemed to have been determined in accordance with this section.

(5) This section does not apply to the remuneration of the recorder of Liverpool or of Manchester while a judge of the Crown Court at Liverpool and the Crown Court at Manchester or to the remuneration of the recorder of London.

**Removal of
recorder
and others.**

9. In subsection (2) of section thirteen of the Criminal Justice Administration Act, 1956 (which enables the Lord Chancellor to remove a recorder for inability and is applied, by subsection (3) of that section, to a paid chairman or deputy chairman of London Sessions) there shall be added at the end the words " or misbehaviour ".

**Remuneration
of certain
clerks of
the peace.**

10.—(1) The remuneration of a clerk of the peace for any borough shall, subject to the following provisions of this section, be such as may from time to time be determined by the council of the borough ; and the remuneration of the clerk of the peace for the City of London shall be such as may from time to time be determined by the court of quarter sessions for the City of London.

(2) In determining that remuneration the council or, as the case may be, the court, may direct that the clerk shall be entitled, in addition to his salary, to retain such of the fees payable to him as are specified in the direction.

(3) The clerk of the peace for any borough, unless he is also the town clerk or a deputy or assistant to the town clerk, may appeal to the Secretary of State against any determination of the council of the borough varying his remuneration and against any refusal of the council to make such a determination.

(4) On an appeal under subsection (3) of this section the Secretary of State may determine the remuneration of the clerk as from such date as he may fix, and in making the determination he may give, vary or rescind any such direction as is mentioned in subsection (2) of this section.

(5) The rate at which any such remuneration as is mentioned in subsection (1) of this section is payable at the commencement of this Act shall continue to be the rate at which it is payable until the remuneration is varied under this section.

11.—(1) A barrister may be appointed chief clerk to any metropolitan stipendiary court. Qualifications
of clerks
at certain
stipendiary
courts.

(2) The following provisions shall apply to the appointment, under section seventeen of the South Staffordshire Stipendiary Justice Act, 1899, of a clerk to the magistrate acting under that Act and of a deputy to that clerk, that is to say—

- (a) a person may be appointed clerk to that magistrate if, and only if, he would be eligible, under section twenty of the Justices of the Peace Act, 1949, to be appointed a justices' clerk, and the power under that section to prescribe age limits shall extend to the appointment of a clerk to that magistrate ;
- (b) a person may be appointed deputy to the clerk to that magistrate notwithstanding that he is not a solicitor of the Supreme Court.

Criminal procedure

12.—(1) The offences specified in the Second Schedule to this Act shall be included among those which a court of quarter sessions has jurisdiction to try under section two of the Administration of Justice (Miscellaneous Provisions) Act, 1938 (which relates to courts with legally qualified chairmen). Extension of
jurisdiction of
quarter
sessions and
magistrates'
courts.

(2) In the First Schedule to the Criminal Justice Act, 1925 (which specifies certain offences which a court of quarter sessions has jurisdiction to try) in paragraph 6 (offences under the Forgery Act, 1913) for the words "twenty pounds", in both places where they occur, there shall be substituted the words "one hundred pounds".

(3) The Magistrates' Courts Act, 1952, shall have effect as if the offences specified in Part I of the Third Schedule to this Act were included among those specified in paragraphs 1 to 18 of the First Schedule to that Act (which specifies indictable offences triable summarily with the consent of the accused) and that Schedule shall be further amended in accordance with Part II of the Third Schedule to this Act.

Power to
discontinue
summary
trial of
indictable
offence and
resume
committal
proceedings.

13. Where, under subsection (5) of section nineteen or subsection (4) of section twenty of the Magistrates' Courts Act, 1952 (which relate to the summary trial of certain indictable offences) a magistrates' court has ceased to inquire into an information as examining justices and begun to try the information summarily, the court may, at any time before the conclusion of the evidence for the prosecution, discontinue the summary trial and resume the inquiry as examining justices.

Committal
to assizes
or quarter
sessions.

14.—(1) Where a magistrates' court proposes to commit a person to the assizes or quarter sessions for any place to be tried, sentenced or dealt with, and a court of assize or quarter sessions for that place is being held at the time of the committal, the magistrates' court may, with his and the prosecutor's consent and with the agreement of the judge or other person holding or presiding over the court or, if more than one, the senior of them, commit him to that court, notwithstanding any enactment requiring his committal to the next assizes or quarter sessions.

(2) In section eleven of the Magistrates' Courts Act, 1952 (which enables a magistrates' court in certain circumstances to commit to assizes instead of quarter sessions) after the word "sessions", in the second place where it occurs, there shall be inserted the words "or that the trial is likely to be a long one".

Committal
to more
convenient
court.

15.—(1) Where a magistrates' court, in pursuance of section five of the Vagrancy Act, 1824, section twenty-eight or section twenty-nine of the Magistrates' Courts Act, 1952, or section sixty-seven of the Mental Health Act, 1959, commits a person to quarter sessions to be sentenced or dealt with, and it appears to the court, having regard to the time when and the place where that person is likely to be sentenced or dealt with, to be more convenient to commit him to other quarter sessions than those for the county or borough for which the court acts, it may commit him to those other quarter sessions (notwithstanding anything in subsection (4) of section twenty or subsection (2) of section twenty-nine of the Criminal Justice Act, 1948, or the said subsection (2) as applied by subsection (2) of the said section sixty-seven); but the court shall not do so—

- (a) unless it appears to the court unlikely that the said person would otherwise be sentenced or dealt with within one month of the committal; or
- (b) in any case where the court is satisfied that that person would thereby suffer hardship.

(2) Where a magistrates' court has power, under section ten of the Magistrates' Courts Act, 1952, or under subsection (1) of this section, to commit a person to a court to which it could not otherwise commit him, and it appears to the magistrates' court that

unless the power is exercised that person is unlikely to be tried or, as the case may be, sentenced or dealt with within eight weeks of the committal, the magistrates' court shall exercise the power unless it is satisfied that there are circumstances which would make the exercise of the power undesirable.

(3) Where a person convicted by a magistrates' court of an offence is, in pursuance of any of the enactments mentioned in subsection (1) of this section, committed to quarter sessions and the court exercises the power conferred on it by that subsection, any appeal against the conviction or against an order made on the conviction shall be made to the court to which that person is committed (instead of to the court specified in paragraph (i) of subsection (1) of section thirty-one of the Summary Jurisdiction Act, 1879).

16.—(1) Where the court before which an offender has been convicted on indictment adjourns the case to enable inquiries to be made for determining the most suitable method of dealing with it, the court may order that the case shall be resumed by such other competent court as it may specify in the order, and may commit the offender in custody or on bail to that court, and that court shall have jurisdiction to deal with the case accordingly; but the court shall not make such an order unless it appears to it likely that the case will be dealt with earlier if the order is made than if it is not made.

Adjournment after conviction and resumption by different or differently composed court.

(2) Any court of assize and, except where the offence is not triable by quarter sessions, any court of quarter sessions, shall be a competent court for the purposes of the preceding subsection.

(3) Without prejudice to subsection (5) of section four of this Act, where a court of quarter sessions dealing with an offence (whether on indictment or on appeal from a magistrates' court) adjourns the case then, unless the question whether the offence has been committed is still in issue, the case may be resumed by the court notwithstanding any change in the person or persons composing it.

(4) A court of quarter sessions may resume a case in pursuance of the foregoing provisions of this section notwithstanding that the offence under consideration is one which is triable by such a court only under section two of the Administration of Justice (Miscellaneous Provisions) Act, 1938 (which relates to courts with legally qualified chairmen) and that the court is not then presided over as mentioned in that section.

(5) The Costs in Criminal Cases Act, 1952, shall apply where a person is committed to any court under subsection (1) of this section as it applies where a person is convicted by such a court.

Commence-
ment and
duration of
sentence.

17.—(1) A sentence imposed by a court of assize shall take effect from the beginning of the day on which it is imposed, unless the court otherwise directs.

(2) The length of any term of imprisonment, corrective training or preventive detention imposed by the sentence of any court shall be treated as reduced by any period during which the offender was in custody before the sentence by reason only of having been committed for trial, remanded after arraignment, or committed, under paragraph (b) of subsection (3) of section six, paragraph (b) of the proviso to subsection (3) of section eight or subsection (4) of section eight of the Criminal Justice Act, 1948, section twenty-eight or section twenty-nine of the Magistrates' Courts Act, 1952, section sixty-seven of the Mental Health Act, 1959, or the Vagrancy Act, 1824, to be sentenced or dealt with.

Miscellaneous and general

Contribution
to costs
incurred under
certain
provisions.

18.—(1) Subsections (2) to (5) of this section shall apply where a person is tried, sentenced or dealt with by or before any court of assize or quarter sessions by or before which he could not have been tried, sentenced or dealt with but for the following provisions, that is to say:—

the proviso to subsection (3) of section one of the Assizes and Quarter Sessions Act, 1908 ;

the proviso to subsection (3) of section seventy-eight of the Supreme Court of Judicature (Consolidation) Act, 1925 ;

section fourteen of the Criminal Justice Act, 1925 ;

subsections (2) and (3) of section eleven of the Administration of Justice (Miscellaneous Provisions) Act, 1938 ;

section ten of the Magistrates' Courts Act, 1952 ; and

section fifteen and subsection (1) of section sixteen of this Act.

(2) Any costs payable in the case out of local funds under the Costs in Criminal Cases Act, 1952, shall in the first instance be paid as in the case of an offence committed in the county or county borough in which the proceedings take place but shall be recoverable in accordance with subsection (5) of this section.

(3) Such sum (if any) in respect of the expenses of holding the court (including salaries and allowances) as may be determined in accordance with regulations made by the Secretary of State by statutory instrument may be recovered by the authority incurring those expenses from the authority (if

different) liable to defray the expenses of the court by or before which the said person would have been tried, sentenced or dealt with apart from the said provisions.

(4) Where justices, under section ten of the Magistrates' Courts Act, 1952, the proviso to subsection (3) of section one of the Assizes and Quarter Sessions Act, 1908, or the proviso to subsection (3) of section seventy-eight of the Supreme Court of Judicature (Consolidation) Act, 1925, commit a person to a court to which they could not otherwise commit him, the clerk to the justices shall send to the proper officer of that court a notice specifying the court to which the said person would have been committed apart from those provisions.

(5) Where a person tried, sentenced or dealt with as mentioned in subsection (1) of this section was convicted or committed by justices other than justices for the county or county borough in which the proceedings take place, the council of that county or county borough may recover any sum paid by them under subsection (2) of this section from the following council, that is to say,—

(a) if those justices were justices for a county, from the council of that county ;

(b) if they were justices for a non-county borough, from the council of the county in which that borough is situated ; and

(c) if they were justices for a county borough, from the council of that borough.

(6) Where a person is committed to be tried, sentenced or dealt with by or before any court of assize or quarter sessions but is not tried, sentenced or dealt with by or before that court, subsections (2), (3) and (5) of this section shall, with the necessary modifications, apply as they apply where a person is tried, sentenced or dealt with as mentioned in subsection (1) of this section.

19. Any increase attributable to the provisions of this Act Financial in the sums payable under any other enactment out of the Con- provisions. solidated Fund, out of moneys provided by Parliament or into the Exchequer shall be paid out of that Fund, out of moneys so provided and into the Exchequer respectively.

20.—(1) The enactments specified in the Fourth Schedule to Amendments this Act shall have effect subject to the amendments specified in and repeals. that Schedule, being minor amendments and amendments consequential on the foregoing provisions of this Act.

(2) The enactments specified in the Fifth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Short title,
interpretation,
commence-
ment and
extent.

21.—(1) This Act may be cited as the Criminal Justice Administration Act, 1962.

(2) References in this Act to any enactment are references thereto as amended, and include references thereto as applied, by any other enactment including, except where the context otherwise requires, this Act.

(3) The following provisions of this Act, that is to say, sections four and twelve to eighteen, the Second and Third Schedules and Part II of the Fourth and Part II of the Fifth Schedule, shall not come into operation until such day as the Lord Chancellor may by order made by statutory instrument appoint, and different days may be so appointed for different provisions; and any reference in any provision of this Act to the commencement of this Act shall be construed as a reference to the day on which that provision comes into operation.

(4) This Act does not extend to Scotland or to Northern Ireland.

Section 3.

SCHEDULES

FIRST SCHEDULE

HALLAMSHIRE

PART I

City and boroughs

Barnsley
Doncaster

Rotherham
Sheffield

Urban districts

Adwick le Street
Bentley with Arksey
Conisbrough
Cudworth
Darfield
Darton
Dearne
Dodworth
Hoyland Nether
Maltby

Mexborough
Penistone
Rawmarsh
Royston
Stocksbridge
Swinton
Tickhill
Wath upon Dearne
Wombwell
Worsbrough

Rural districts

Doncaster
Hemsworth
Kiveton Park
Penistone

Rotherham
Thorne
Wortley

PART II

Excepted parishes of the rural district of Hemsworth

Ackworth
Badsworth
Hessle and Hill Top
Huntwick with Foulby and
Nostell
Kirk Smeaton
Little Smeaton

North Elmsall
South Elmsall
South Kirkby
Thorpe Audlin
Upton
Walden Stubbs
West Hardwick

SECOND SCHEDULE

Section 12.

OFFENCES TRIABLE AT QUARTER SESSIONS

1. Bigamy, and offences against the laws relating to marriage.
2. Offences under section nine of the Night Poaching Act, 1828 (night poaching by three or more armed persons).
3. Offences under section six of the Sexual Offences Act, 1956 (intercourse with girl between thirteen and sixteen) and attempts to commit such offences.

THIRD SCHEDULE

Section 12.

INDICTABLE OFFENCES TRIABLE SUMMARILY

PART I

*Offences added to those specified in First Schedule to
Magistrates' Courts Act, 1952*

1. Offences under section twenty-seven of the Offences against the Person Act, 1861 (abandoning or exposing child).
2. Offences under section sixty of the Offences against the Person Act, 1861 (concealing birth of a child).
3. Offences under section six of the Forgery Act, 1913 (uttering forged document) in relation to any document being an authority or request for the payment of money or for the delivery or transfer of goods and chattels, where the amount of the money or value of the goods or chattels does not exceed one hundred pounds.
4. Offences under section twenty-four of the Larceny Act, 1916 (sacrilege) where the felony alleged to have been committed in the place broken into or out of is among the offences specified in the First Schedule to the Magistrates' Courts Act, 1952 (as amended by this Schedule).
5. Offences under section twenty-six or section twenty-seven of the Larceny Act, 1916 (housebreaking and committing, or with intent to commit, felony), where the place broken into or out of is neither a dwelling-house nor a building within the curtilage of or occupied with a dwelling-house, and the felony alleged to have been committed or intended is among the offences specified in the First Schedule to the Magistrates' Courts Act, 1952 (as amended by this Schedule).
6. Offences under section twenty-eight of the Larceny Act, 1916 (being found by night armed or in possession of housebreaking implements or with intent to commit a felony) where, in the case of an offence under paragraph (1), (3) or (4) of that section, the felony alleged to have been intended is among the offences specified in the First Schedule to the Magistrates' Courts Act, 1952 (as amended by this Schedule) and, in the case of an offence under the said paragraph (4), the building is neither a dwelling-house nor a building within the curtilage of or occupied with a dwelling-house.

PART II

*Further Amendments of First Schedule to the Magistrates'
Courts Act, 1952*

7. In paragraph 10 (offences under the Forgery Act, 1913) for the words "twenty pounds", in both places where they occur, there shall be substituted the words "one hundred pounds".

3RD SCH.

8. In paragraph 11 (offences under the Larceny Act, 1916) for the words "twenty pounds" (which refer to offences under section twenty) there shall be substituted the words "one hundred pounds".

9. In paragraph 17 (indecent assault on person under sixteen) the words "who is under the age of sixteen" shall be omitted.

Section 20.

FOURTH SCHEDULE

ENACTMENTS AMENDED

PART I

AMENDMENTS TAKING EFFECT FROM PASSING OF ACT

The Metropolitan Police Courts Act, 1839

In section five, after the words "unless he shall be" there shall be inserted the words "a barrister or".

The Local Government Act, 1888

In subsection (3) of section forty-two, for the words from "such yearly salary" to the end of the subsection there shall be substituted the words "a yearly salary".

The Quarter Sessions (London) Act, 1896

In section two, for the words from "the sum" to the end of the section there shall be substituted the words "such remuneration as may be determined under section eight of the Criminal Justice Administration Act, 1962".

The South Staffordshire Stipendiary Justice Act, 1899

In section seventeen, in subsection (1), for the words "a solicitor of the Supreme Court" there shall be substituted the words "a person eligible under section eleven of the Criminal Justice Administration Act, 1962".

The Supreme Court of Judicature (Consolidation) Act, 1925

In subsection (1) of section two, for the words from "not less" to the end of the subsection there shall be substituted the words "not less than twenty-five nor more than fifty-three puisne judges of that Court".

The Lancashire Quarter Sessions Act, 1928

In section nine, for the words from "such fee" to the end of the section there shall be substituted the words "such remuneration as may be determined under section eight of the Criminal Justice Administration Act, 1962".

The Administration of Justice (Miscellaneous Provisions) Act, 1938 4TH SCH.

In subsection (1) of section four, for the words "a salary", in the first place where they occur, there shall be substituted the word "remuneration" and for the words from "a salary", in the second place where those words occur, to the end of the subsection there shall be substituted the words "such remuneration as may be determined under section eight of the Criminal Justice Administration Act, 1962".

The Supreme Court of Judicature (Amendment) Act, 1944

In subsection (2) of section one, for the words "forty-eight" there shall be substituted the words "fifty-three".

The Middlesex County Council Act, 1944

In subsection (3) of section three hundred and ninety-five, for the words from "by way of" to the end of the subsection there shall be substituted the words "such remuneration as may be determined under section eight of the Criminal Justice Administration Act, 1962".

The Supreme Court of Judicature (Circuit Officers) Act, 1946

In subsection (1) of section one, there shall be inserted at the end the words "or an assistant clerk of assize appointed under section two of the Criminal Justice Administration Act, 1962".

*The Cheshire and Lancashire County Councils
(Runcorn-Widnes Bridge, etc.) Act, 1947*

In subsection (1) of section eighty-one, for the words from "such salary" to the end of the subsection there shall be substituted the words "such remuneration as may be determined under section eight of the Criminal Justice Administration Act, 1962".

The Criminal Justice Administration Act, 1956

In subsection (3) of section fifteen, after the words "borough council" there shall be inserted the words "or the appropriate committee thereof".

The Hertfordshire County Council Act, 1960

In section forty-nine, in subsection (2), for the words from "such fee" to the end of the subsection there shall be substituted the words "such remuneration as may be determined under section eight of the Criminal Justice Administration Act, 1962"; and in subsection (4), for the words "All fees" there shall be substituted the words "Any remuneration".

4TH SCH.

The Lancashire Quarter Sessions Act, 1961

In subsection (1) of section five, for the words from "approved" to the end of the subsection there shall be substituted the words "determined under section eight of the Criminal Justice Administration Act, 1962".

PART II

AMENDMENTS TAKING EFFECT FROM APPOINTED DAY

The County of Hertford Act, 1878

In section five, for the words "at the Hertford division quarter sessions", in both places where they occur, there shall be substituted the words "within the Hertford division" and for the words "at the St. Alban division quarter sessions" and the words "at the Liberty of St. Alban division quarter sessions" there shall be substituted the words "within the St. Alban division".

The Municipal Corporations Act, 1882

In section one hundred and sixty-eight, in subsection (1), for the words from "and try" to "jurisdiction" there shall be substituted the words "and deal with such cases".

The Criminal Justice Act, 1925

For section twenty-three there shall be substituted the following section:—

"Sessions
for county
of Hertford.

23. Courts of quarter sessions for the county of Hertford shall be held both within the Hertford division and within the St. Alban division, and different persons may be elected to act as chairman or deputy chairman of the court when sitting within each of those divisions."

The Administration of Justice (Miscellaneous Provisions) Act, 1938

In section two, in subsections (1), (5) and (6), after the words "First Schedule to this Act" there shall be inserted the words "or the Second Schedule to the Criminal Justice Administration Act, 1962".

The Magistrates' Courts Act, 1952

In section twenty-four, after the words "this Act" there shall be inserted the words "or section thirteen of the Criminal Justice Administration Act, 1962".

In subsection (7) of section one hundred and twenty-six, after the words "Administration of Justice (Miscellaneous Provisions) Act, 1938" there shall be inserted the words "or the Second Schedule to the Criminal Justice Administration Act, 1962".

The Sexual Offences Act, 1956

4TH SCH.

In the Second Schedule, in paragraph 10, in the second column, for the words "not triable at quarter sessions", in both places where they occur, there shall be substituted the words "triable at quarter sessions under section two of the Administration of Justice (Miscellaneous Provisions) Act, 1938 (which relates to courts with a legally qualified chairman) but not otherwise".

FIFTH SCHEDULE

Section 20.

ENACTMENTS REPEALED

PART I

REPEALS TAKING EFFECT FROM PASSING OF ACT

Session and Chapter	Short Title	Extent of Repeal
14 & 15 Vict. c. 55.	The Criminal Justice Administration Act, 1851.	Sections nine to eleven.
45 & 46 Vict. c. 50.	The Municipal Corporations Act, 1882.	In section one hundred and sixty-two, in subsection (2), the words from "and" to the end of the subsection. In section one hundred and sixty-three, subsection (7). In section one hundred and sixty-six, in subsection (1), the words "in case of sickness or unavoidable absence" and the words from "at the quarter sessions" to the end of the subsection, and subsection (2). In section one hundred and sixty-eight, paragraph (a) of subsection (6), subsection (7), and in subsection (10) the words "and certificates given".
62 & 63 Vict. c. xc.	The South Staffordshire Stipendiary Justice Act, 1899.	In section seventeen, in subsection (4), the words "being a solicitor of the Supreme Court".
18 & 19 Geo. 5. c. xxx.	The Lancashire Quarter Sessions Act, 1928.	In section three, the words "and may fix and from time to time alter the salary of". In section four, the words "and may fix and from time to time alter the salary of". In section five, the words "and may fix and from time to time alter the salary of". In section ten, subsection (2).

5TH SCH.

Session and Chapter	Short Title	Extent of Repeal
7 & 8 Geo. 6. c. xxi.	The Middlesex County Council Act, 1944.	Section three hundred and ninety-six.
12, 13 & 14 Geo. 6. c. 101.	The Justices of the Peace Act, 1949.	In section thirty-nine, in paragraph (a) of subsection (3), the words from "to approve" to "1882".
15 & 16 Geo. 6. & 1 Eliz. 2. c. 12.	The Judicial Offices (Salaries, &c.) Act, 1952.	In section one, subsections (5) and (6).
2 & 3 Eliz. 2. c. xxiv.	The London County Council (General Powers) Act, 1954.	Section fifteen.
4 & 5 Eliz. 2. c. 34.	The Criminal Justice Administration Act, 1956.	In section five, subsections (3) to (5). In section fifteen, in subsection (1), the words from "up to such number" to "under that section", in subsection (3), the words "assistant recorder", in the first place where they occur, and the words from "passed" to "Lord Chancellor"; and subsection (6).
7 & 8 Eliz. 2. c. 41.	The Criminal Justice Administration (Amendment) Act, 1959.	The whole Act.
8 & 9 Eliz. 2. c. xlix.	The Hertfordshire County Council Act, 1960.	In section forty-nine, subsection (1).
9 & 10 Eliz. 2. c. 3.	The Administration of Justice (Judges and Pensions) Act, 1960.	Subsection (1) of section one. In Part I of the Second Schedule, the entry relating to section two of the Supreme Court of Judicature (Consolidation) Act, 1925, and the entry relating to the Supreme Court of Judicature (Amendment) Act, 1944.
9 & 10 Eliz. 2. c. xiv.	The Lancashire Quarter Sessions Act, 1961.	In section seven, in subsection (2), paragraph (d).

PART II

REPEALS TAKING EFFECT FROM APPOINTED DAY

5TH SCH.

Session and Chapter	Short Title	Extent of Repeal
12 Ric. 2. c. 10.	—	The whole Chapter, so far as unrepealed.
34 & 35 Hen. 8. c. 26.	The Laws in Wales Act, 1542.	In section twenty-one, the words from "four times" to "causes".
9 Geo. 4. c. 69.	The Night Poaching Act, 1828.	In section nine, the words from "before the justices" to "committed".
5 & 6 Vict. c. 38.	The Quarter Sessions Act, 1842.	In section one, paragraph 10.
22 & 23 Vict. c. 4.	The Middlesex Sessions Act, 1859.	Section four.
45 & 46 Vict. c. 50.	The Municipal Corporations Act, 1882.	In section one hundred and sixty-five, in subsection (1), the words from "once" to "directs".
8 Edw. 7. c. 41.	The Assizes and Quarter Sessions Act, 1908.	In section one, in subsection (3), paragraphs (a) and (b) of the proviso and the word "but" preceding those paragraphs.
15 & 16 Geo. 5. c. 49.	The Supreme Court of Judicature (Consolidation) Act, 1925.	In section seventy-eight, in subsection (3), paragraphs (a) and (b) of the proviso and the word "but" preceding those paragraphs.
15 & 16 Geo. 5. c. 86.	The Criminal Justice Act, 1925.	In section fourteen, subsection (4). Section twenty-two.
23 & 24 Geo. 5. c. 38.	The Summary Jurisdiction (Appeals) Act, 1933.	In section two, in subsection (3), the words from "In this subsection" to the end of the subsection. Section seven. In section eight, in subsection (3), the words from "and any reference" to the end of the subsection.
1 Edw. 8 & 1 Geo. 6. c. 12.	The Firearms Act, 1937.	In section nine, subsection (3). In the First Schedule, in paragraph 9, sub-paragraph (a) and the words "seven and" and the words from "and the provisions" to "the said section seven".
1 & 2 Geo. 6. c. 63.	The Administration of Justice (Miscellaneous Provisions) Act, 1938.	In section three, in subsection (1), the words "for any county or division or part of a county", the words from "under section twenty-two" to "1925" and the words "under that Act"; and in subsection (2), the words from "at a session" to the end of the subsection. In section eleven, subsection (4).

5TH SCH.

Session and Chapter	Short Title	Extent of Repeal
11 & 12 Geo. 6. c. 58.	The Criminal Justice Act, 1948.	In section twenty (including that section as set out in the Sixth Schedule to the Criminal Justice Act, 1961), in subsection (4), paragraph (a), in paragraph (b) the words "in any other case" and, in the words following the paragraphs, the words "to an appeal committee", the words "by the appeal committee" and the words after "sitting"; in subsection (5), in paragraph (a) and in paragraph (d), the words "appeal committee or"; and subsection (6). In section twenty-nine, in subsection (2), paragraph (a), in paragraph (b) the words "in any other case" and, in the words following the paragraphs, the words "to an appeal committee", the words "by the appeal committee" and the words after "sitting"; in subsection (3), in paragraph (a) and in paragraph (d), the words "appeal committee or"; subsection (4); and in subsection (5) the words "the appeal committee or" and the words "as the case may be". Section thirty-four.
12, 13 & 14 Geo. 6. c. 101.	The Justices of the Peace Act, 1949.	In section thirty-nine, paragraph (a) of subsection (3).
15 & 16 Geo. 6. & 1 Eliz. 2. c. 48.	The Costs in Criminal Cases Act, 1952.	In section fourteen, in subsection (1), the words "or the appeal committee of quarter sessions".
15 & 16 Geo. 6. & 1 Eliz. 2. c. 55.	The Magistrates' Courts Act, 1952.	In section eighty-four, in paragraph (a) of subsection (5), the words "the appeal committee of". In the First Schedule, in paragraph 17, the words "who is under the age of sixteen". In the Fifth Schedule, the amendment of section fourteen of the Criminal Justice Act, 1925.
2 & 3 Eliz. 2. c. 33.	The Pool Betting Act, 1954.	In section one, in subsection (5), the words "seven and".

5TH SCH.

Session and Chapter	Short Title	Extent of Repeal
4 & 5 Eliz. 2. c. 34.	The Criminal Justice Administration Act, 1956.	In section fifteen, subsection (5).
7 & 8 Eliz. 2. c. 25.	The Highways Act, 1959	In section two hundred and seventy-six, in paragraph (a) of subsection (9), the words "the appeal committee of".
8 & 9 Eliz. 2. c. 60.	The Betting and Gaming Act, 1960.	In the First Schedule, in subparagraph (6) of paragraph 22, the words "seven and". In the Third Schedule, in paragraph 7, the words "seven and". In the Fifth Schedule, in paragraph 7, the words "seven and".
9 & 10 Eliz. 2. c. 39.	The Criminal Justice Act, 1961.	In section thirty-nine, in subsection (1), the definition of "court".

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Table of Statutes referred to in this Act

Short Title	Session and Chapter
Vagrancy Act, 1824	5 Geo. 4. c. 83.
Night Poaching Act, 1828	9 Geo. 4. c. 69.
Metropolitan Police Courts Act, 1839	2 & 3 Vict. c. 71.
Offences against the Person Act, 1861	24 & 25 Vict. c. 100.
County of Hertford Act, 1878	41 & 42 Vict. c. 50.
Summary Jurisdiction Act, 1879	42 & 43 Vict. c. 49.
Municipal Corporations Act, 1882	45 & 46 Vict. c. 50.
Sheriffs Act, 1887	50 & 51 Vict. c. 55.
Local Government Act, 1888	51 & 52 Vict. c. 41.
Quarter Sessions (London) Act, 1896	59 & 60 Vict. c. 55.
South Staffordshire Stipendiary Justice Act, 1899	62 & 63 Vict. c. xc.
Assizes and Quarter Sessions Act, 1908	8 Edw. 7. c. 41.
Forgery Act, 1913	3 & 4 Geo. 5. c. 27.
Larceny Act, 1916	6 & 7 Geo. 5. c. 50.
Supreme Court of Judicature (Consolidation) Act, 1925.	15 & 16 Geo. 5. c. 49.
Criminal Justice Act, 1925	15 & 16 Geo. 5. c. 86.
Lancashire Quarter Sessions Act, 1928	18 & 19 Geo. 5. c. xxx.
Summary Jurisdiction (Appeals) Act, 1933	23 & 24 Geo. 5. c. 38.
Administration of Justice (Miscellaneous Provisions) Act, 1938	1 & 2 Geo. 6. c. 63.
Supreme Court of Judicature (Amendment) Act, 1944.	7 & 8 Geo. 6. c. 9.
Middlesex County Council Act, 1944	7 & 8 Geo. 6. c. xxi.
Supreme Court of Judicature (Circuit Officers) Act, 1946.	9 & 10 Geo. 6. c. 78.

Short Title	Session and Chapter
Cheshire and Lancashire County Councils (Runcorn-Widnes Bridge, etc.) Act, 1947.	10 & 11 Geo. 6. c. xxix.
Criminal Justice Act, 1948	11 & 12 Geo. 6. c. 58.
Justices of the Peace Act, 1949	12 13 & 14 Geo. 6. c. 101.
Administration of Justice (Pensions) Act, 1950 ...	14 & 15 Geo. 6. c. 11.
Costs in Criminal Cases Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 48.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 55.
Criminal Justice Administration Act, 1956 ...	4 & 5 Eliz. 2. c. 34.
Sexual Offences Act, 1956	4 & 5 Eliz. 2. c. 69.
Mental Health Act, 1959	7 & 8 Eliz. 2. c. 72.
Hertfordshire County Council Act, 1960 ...	8 & 9 Eliz. 2. c. xlix.
Lancashire Quarter Sessions Act, 1961	9 & 10 Eliz. 2. c. xiv.

CHAPTER 16

An Act to extinguish any right of navigation on the Forth and Clyde Canal, and the obligations upon the British Transport Commission to keep that canal open and to maintain it for purposes of navigation.

[29th March, 1962]

WHEREAS the waterway now known as the Forth and Clyde Canal (in this Act referred to as the Canal) was constructed in pursuance of various Acts consolidated by the Act chapter lv of the fourth and fifth years of the reign of Her late Majesty Queen Victoria, and has been kept open and maintained for the purpose of navigation between the Firth of Forth and the Firth of Clyde in accordance with the provisions of that Act and of the Caledonian Railway and Forth and Clyde Navigation Companies Act, 1867, and the Regulation of Railways Act, 1873:

And whereas the British Transport Commission (in this Act referred to as the Commission) established by the Transport Act, 1947, are the owners of the Canal by virtue of that Act:

And whereas the Commission are charged under the said Act of 1947 as amended by the Transport Act, 1953, to provide, in such places and to such extent as may appear to the Commission to be expedient, facilities for traffic on inland waterways:

And whereas freight traffic has ceased to pass along the Canal which is now used for navigation mainly by fishing boats and pleasure craft: